

Draw Down means the delivery and Settlement of a Forward Contract at any time before the Maturity Date (Delivery Date/Value Date).

Export Control Laws means any applicable export control laws and regulations of the United States, the European Union, the United Kingdom, as well as any laws and regulations of any other countries applicable to the export or re-export of goods, services, software, and technology. This includes, without limitation, regulations published by the US Bureau of Industry and Security (BIS), the US Directorate of Defense Trade Controls (DDTC), the US Office of Foreign Assets Control (OFAC), the UK Office of Financial Sanctions Implementation (OFSI), the UK Export Control Joint Unit, and the European Commission.

Facility means the Settlement terms and foreign currency exposure or trading limit(s) that Convera, in its sole discretion, may grant to the Client from time to time. Additional detail with respect to the Facility may be set forth in a written communication and delivered to the Client by Convera.

Foreign Exchange Contract means legally binding agreement(s) between the Parties, in accordance with an Instruction, to effect a foreign exchange transaction including a Forward Contract in accordance with an Instruction.

Forward Contract means the legally binding agreement(s) in which the Client agrees to purchase from or sell to Convera a specific amount of funds in one currency and to settle, on an agreed future date, in a specific amount of funds in another currency or to purchase a Non-Deliverable Forward Contract.

Holding Balance means the Client funds held by Convera Singapore for the Client for the convenience of the Client pending receipt by Convera Singapore of an Instruction, including Payee designation. Funds may be maintained in the Holding Balance for a maximum of 180 days. The Client is responsible for all risks (e.g. volatility of the foreign currency market) associated with maintaining the Holding Balance in one or more foreign currencies. If Convera does not receive a timely Instruction for the disposition of such funds, those funds will be converted to the Client's home currency at the then prevailing exchange rate(s) and returned to the Client. The Holding Balance will be held by Convera Singapore as "e-money" for the purposes of the Payment Services Act.

Incoming Payment has the meaning given in clause 15.1(a).

Instruction (Request) means request(s) by the Client for Convera to provide the Services, including any request(s) for the Services made by:

- a) mail, electronic mail, facsimile, telephone;
- b) Standing Order Instruction;
- c) Online Payment System; or
- d) other means which is effective upon receipt, each as more particularly described in this Agreement.

Maturity Date (Delivery Date/Value Date) means the date on which the Forward Contract becomes due for delivery and Settlement. The Maturity Date (Delivery Date/Value Date) must be a business day in all jurisdictions involved in a Forward Contract, including both countries of the currencies involved in the transaction. The Maturity Date (Delivery Date/Value Date) will always be the last day of the Delivery Window (if any).

Minor Overpayment means an overpayment of Settlement funds by the Client to Convera of up to SGD5.

Non-Deliverable Forward Contract means a Forward Contract for an undeliverable currency that is settled by the Parties netting the value of the contract against the spot rate in SGD on a specified date and the relevant party paying the other the difference.

Notification means a communication other than an Instruction made by mail, electronic mail, facsimile, telephone, the Online Payment System or other means.

Online Payment System means Convera' proprietary online system(s) for making international payments, the provision of the Services or any other online system offered by a third-party entity under any agreement between Convera and such third-party entity.

Partial Prepayment means collateral (or security), the amount of which will be determined by Convera in its sole discretion and deposited with Convera in connection with a Foreign Exchange Contract.

Party or Parties means individually or collectively, the Client, Convera Singapore and Convera FS Singapore.

Payee means any third party(ies) to which the Client instructs Convera to deliver a payment.

Payee Data has the meaning given to it in clause 11.6.